

6 & 7 GEO. 6. *Ministry of Health Provisional* Ch. x.
Order Confirmation (Chiltern Hills Spring Water) Act, 1943.



CHAPTER x.

An Act to Confirm a Provisional Order of the Minister of Health relating to the Chiltern Hills Spring Water Company.
[22nd July 1943.]

WHEREAS under the provisions of the Gas and Water 33 & 34 Vict.
Works Facilities Act 1870 and the Gas and Water Works c. 70.
Facilities Act 1870 Amendment Act 1873 the Minister of 36 & 37 Vict.
Health has made a Provisional Order which needs confirmation c. 89.
by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full ^{schedule} validity and force. _{confirmed.}

2. This Act may be cited as the Ministry of Health Provisional Short title.
Order Confirmation (Chiltern Hills Spring Water) Act 1943.

SCHEDULE.

CHILTERN HILLS SPRING WATER.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 to modify the limits of supply of the Chiltern Hills Spring Water Company and for other purposes.

THE MINISTER OF HEALTH in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows:—

Short and
collective titles.

1. This Order may be cited as the Chiltern Hills Spring Water Order 1943 and the Chiltern Hills Spring Water Orders 1876 and 1885 and this Order may be cited together as the Chiltern Hills Spring Water Orders 1876 to 1943.

Commencement
of Order.

2. This Order shall come into operation on the first day of October nineteen hundred and forty-three:

38 & 39 Vict.
c. 55.

Provided that if the Bucks Water Order 1943 (made by the Minister of Health in pursuance of sections 297 and 303 of the Public Health Act 1875) is not confirmed by Parliament on or before the said first day of October this Order shall instead of coming into operation on that date come into operation on the first day of January April July or October which shall first occur after that Order has been so confirmed.

Interpretation.

3. In this Order unless the context otherwise requires—

“the commencement of this Order” means the date upon which this Order comes into operation;

“the excluded areas” means the areas within which the powers of the undertakers to supply water shall cease by operation of this Order;

“the limits of supply” means the limits within which the undertakers are authorised to supply water by the Chiltern Hills Spring Water Act 1870 and the Chiltern Hills Spring Water Orders 1876 and 1885;

“the map” means the map prepared in triplicate sealed with the official seal of the Minister of Health and marked “Map referred to in the Bucks Water Order 1943” of which one copy has been deposited in the office of the Minister one copy has been deposited in the office of the undertakers and one copy has been deposited in the office of the Bucks Water Board; and

“the undertakers” means the Chiltern Hills Spring Water Company.

33 Vict. c. xxv.

4. As from the commencement of this Order those parts of the rural district of Aylesbury in the county of Bucks (consisting of the parishes of Hardwick Quarrendon Westcott and Wotton Underwood and of parts of the parishes of Fleet Marston Stone Waddesdon and Wendover) which are coloured red on the map shall cease to be within the limits of supply and (except as hereinafter provided) all the powers rights privileges authorities duties and obligations of the undertakers with respect to the supply of water in the excluded areas shall cease and determine : Modification of limits of supply.

Provided that the undertakers may continue to maintain and use and to alter enlarge renew and improve in the excluded areas all such conduits pipes and mains as may be necessary for the exercise of their powers to supply water in other parts of the limits of supply and for such purposes may continue to exercise the powers of the Water-works Clauses Act 1847 with regard to the breaking up of streets. 10 & 11 Vict. c. 17.

5. All costs charges and expenses of and incidental to the application for this Order and the preparation making and confirmation of this Order shall be paid by the undertakers and may in whole or in part be defrayed out of revenue. Costs of order.

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